

HOUSE No. 4999

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, January 29, 2026.

The committee on The Judiciary, to whom was referred the petition (accompanied by bill, House, No. 2041) of David T. Vieira for legislation to protect victims of stalking in violation of harassment prevention orders, reports recommending that the accompanying bill (House, No. 4999) ought to pass.

For the committee,

MICHAEL S. DAY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect victims of stalking in violation of harassment prevention orders.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 7 of chapter 209A of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by inserting, after the first sentence in the second paragraph,
3 the following sentence:- The appropriate law enforcement agency responsible for notice to the
4 defendant shall notify the victim when a temporary or permanent abuse prevention order: (i) has
5 been successfully served; (ii) has not been successfully served within 12 hours of receipt of the
6 order from the court, and every 24 hours thereafter until service is complete or the court orders
7 otherwise, and the effect of non-service on the order's validity; or (iii) has expired or otherwise
8 become ineffective.

9 SECTION 2. Section 9 of chapter 258E of the General Laws, as so appearing, is hereby
10 amended by inserting, after the first sentence in the second paragraph, the following sentence:
11 The appropriate law enforcement agency responsible for notice to the defendant shall notify the
12 victim when a temporary or permanent harassment prevention order: (i) has been successfully
13 served; (ii) has not been successfully served within 12 hours of receipt of the order from the
14 court, and every 24 hours thereafter until service is complete or the court orders otherwise, and

- 15 the effect of non-service on the order's validity; or (iii) has expired or otherwise become
- 16 ineffective.